CONFIDENTIALITY AGREEMENT (INVESTOR DUE DILIGENCE)

This Confidentiality Agreement (the "**Agreement**") is made on 14 September 2026 (the "**Effective Date**").

BETWEEN

(1) **MERLION GROWTH CAPITAL PTE. LTD.** (UEN SAMPLE-SG-7103), a company incorporated in Singapore with its registered office at 18 Contoh Road, #21-04 Contoh Tower, Singapore 000718 (the "**Investor**"); and

(2) **KOPI KITA SDN. BHD.** (Company No. SAMPLE-MY-1000), a company incorporated in Malaysia with its registered office at No. 1, Jalan Contoh Kopi, 50450 Kuala Lumpur (the "**Company**").

BACKGROUND

(A) The Company operates twelve cafe outlets and a central roastery in Malaysia.

(B) The Investor is considering a possible equity investment in the Company (the "**Proposed Transaction**") and has asked to carry out a due diligence review of the Company.

(C) The Company has agreed to give the Investor access to certain information for that purpose on the terms of this Agreement.

1. DEFINITIONS

1.1 In this Agreement:

"**Company Information**" means all information, in any form, relating to the Company, its shareholders, directors, employees, suppliers, landlords, customers, financiers and affiliates, whether or not marked confidential, that is disclosed to or obtained by the Investor or its Representatives in connection with the Proposed Transaction, including financial statements, management accounts, forecasts, contracts, recipes, supplier terms, lease terms, employee details, and all notes, analyses and other material prepared by the Investor that contain or reflect any of it.

"**Investor Information**" means the Investor's own proprietary investment criteria and valuation models, to the extent they are expressly marked "Investor Confidential" when given to the Company.

"**Representatives**" means the Investor's directors, officers, employees, and professional advisers.

"**Restricted Period**" means the period of twenty-four (24) months from the Effective Date.

2. OBLIGATIONS OF THE COMPANY

2.1 The Company shall keep the Investor Information confidential and use it only to consider the Proposed Transaction.

2.2 The Company shall not disclose the existence or terms of the Proposed Transaction, or any discussions with the Investor, to any person other than its directors and professional advisers.

2.3 The Company is responsible for any breach of this Clause by any person to whom it has disclosed the Investor Information.

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3. OBLIGATIONS OF THE INVESTOR

3.1 The Investor shall use reasonable endeavours to keep the Company Information confidential and shall use it for the purpose of evaluating the Proposed Transaction.

3.2 The Investor may disclose Company Information to its Representatives and to its affiliates, co-investors, financing sources and portfolio companies who are reasonably expected to assist in the evaluation of the Proposed Transaction.

3.3 Company Information that is in the Investor's possession may be used for any purpose connected with the Investor's investment activities.

4. EXCLUSIONS

4.1 Clause 3 does not apply to Company Information that is or becomes available to the public, or that the Investor is required to disclose by law, regulation or the rules of any stock exchange or regulatory authority.

4.2 Clause 2 does not apply to the Investor Information where the Company is required by law to disclose it.

5. TERM

5.1 This Agreement begins on the Effective Date and continues for seven (7) years.

5.2 The obligations of the Company under Clause 2 continue until the end of that period and cannot be ended earlier by either party unless the Investor consents in writing.

6. RETURN OF INFORMATION

6.1 The Company shall, within five (5) Business Days of a request by the Investor, return or destroy all Investor Information and certify that it has done so.

6.2 The Investor may keep all Company Information for as long as it considers appropriate for its compliance, record-keeping and investment purposes, and its obligations in Clause 3 continue to apply to it.

7. NON-SOLICITATION AND NO CONTACT

7.1 During the Restricted Period the Company shall not, and shall procure that its directors and employees do not, solicit or employ any director, officer or employee of the Investor or of any of its portfolio companies.

7.2 During the Restricted Period the Investor may contact, and the Company shall not object to the Investor contacting, the Company's suppliers, landlords, customers, financiers and employees about the Company, the Company's business or the Proposed Transaction, but the Company shall not contact any of the Investor's co-investors, financing sources or portfolio companies without the Investor's written consent.

7.3 During the Restricted Period the Company shall not, without the Investor's prior written consent, enter into or continue discussions with any other person regarding an investment in, or sale of, the Company or any of its shares or assets.

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8. NO WARRANTY; NO COMMITMENT

8.1 Neither the Investor nor the Company is obliged to proceed with the Proposed Transaction. The Investor may end its review at any time.

8.2 The Company warrants that the Company Information is complete, accurate and not misleading in any respect.

9. INDEMNITY AND LIQUIDATED DAMAGES

9.1 The Company shall indemnify the Investor against all losses, liabilities, damages, costs and expenses (including legal fees on a full indemnity basis) arising out of or in connection with any breach of this Agreement by the Company, its directors, employees or advisers, or any inaccuracy in the Company Information.

9.2 Without affecting Clause 9.1, the Company shall pay the Investor liquidated damages of S$250,000 for each breach of Clause 2 or Clause 7, which the parties agree is a genuine pre-estimate of loss and not a penalty.

9.3 The Investor shall be entitled to an injunction or specific performance without proof of actual damage. The Company shall not be entitled to claim that damages are an adequate remedy.

10. GOVERNING LAW AND DISPUTES

10.1 This Agreement is governed by the laws of Singapore.

10.2 The courts of Singapore have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement, and the Company submits to that jurisdiction and waives any objection that Singapore is an inconvenient forum.

11. GENERAL

11.1 This Agreement is the entire agreement on its subject matter. It may be varied only in writing signed by both parties.

11.2 The Investor may assign or transfer its rights under this Agreement to any affiliate or successor. The Company may not assign or transfer any of its rights or obligations.

11.3 No person other than the parties has any right under the Contracts (Rights of Third Parties) Act 2001 of Singapore to enforce any term of this Agreement, save that the Investor's affiliates may enforce Clauses 3 and 9.

11.4 Notices must be in writing and delivered by hand, courier or email to the addresses above. Notices to the Company are marked for the attention of the Managing Director, Ms. Lim Contoh.

11.5 "**Business Day**" means a day other than a Saturday, Sunday or public holiday in Singapore.

11.6 If any provision is invalid or unenforceable, the remaining provisions continue in force.

SIGNATURES

SIGNED for and on behalf of **MERLION GROWTH CAPITAL PTE. LTD.**

Signature: _____

Name: Mr. Darren Contoh Title: Managing Partner

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Date: _____

SIGNED for and on behalf of **KOPI KITA SDN. BHD.**

Signature: _____

Name: Ms. Lim Contoh Title: Managing Director

Date: _____

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